

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/07/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005199

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: C. IBARRA

PLAINTIFF: L3 COMMERCIAL
TRAINING SOLUTIONS AIRLINE
ACADEMY, A COMMERCIAL FLIGHT
SCHOOL

vs.

DEFENDANT: COLIN J. HENRY, ET AL

NATURE OF PROCEEDINGS: 1) MOTION – AMEND SECOND ANSWER
2) MOTION – AMEND CROSS-COMPLAINT

RULING

Defendant and Cross-Complainant James Henry’s (“James¹”) Motions for Leave to File Second Amended Cross-Complaint and Second Amended Answer are **GRANTED**. James shall file both amended pleadings within ten (10) days of the date of this Order.

Background

Plaintiff and Cross-Defendant L3 Commercial Training Solutions Airline Academy is a commercial flight school. Defendant Colin Henry (“Colin”) is a former student of the school. Plaintiff alleges that Colin and his father James (collectively “Defendants”), signed a contract to pay for Colin’s pilot training. Thereafter, they failed to pay, and on January 27, 2025, Plaintiff filed suit to collect amounts owing.

On or about June 4, 2025, James filed an answer. No cross-complaint was filed with the initial answer. On January 26, 2026, Orders granting James’s requests to file a Cross-Complaint and a First-Amended Answer were filed. On March 16, 2026, James filed a First Amended Cross-Complaint.

Presently before the Court are James’s Motions to for Leave to File a Second Amended Cross-Complaint and a Second Amended Answer.

Legal Standard

¹ Due to both defendants sharing a last name, the Court refers to each individually by their first name or collectively as “Defendants.” The Court intends no disrespect in doing so.

Under Code of Civil Procedure section 473, subdivision (a)(1), the Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding. As judicial policy favors resolution of all disputed matters in the same lawsuit, courts liberally permit amendments of the pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) Denial is rarely justified unless opposing parties demonstrate unreasonable delay plus prejudice if the motion is granted. A mere showing of unreasonable delay by the plaintiff without any showing of resulting prejudice to defendants is an insufficient ground to justify denial of the plaintiff's motion. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Prejudice exists where the amendment would require delaying the trial, resulting loss of critical evidence or added costs of preparation, and an increased burden of discovery, inter alia. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Generally, arguments attacking the merits of the proposed amendments do not justify denial of the motion. Courts allow the amendment and then let the parties test the legal sufficiency in other appropriate proceedings such as a demurrer. (*See Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

A party requesting leave to amend must also comply with California Rules of Court, rule 3.1324. Compliance with this rule is satisfied by including a copy of the proposed amended pleading, detailing what changes will be made from the previous pleading by stating what allegations are to be deleted or added as compared to the previous pleading including page, paragraph and line number, and attaching a declaration by plaintiff's counsel, as to: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier.

Discussion

The Motion substantially complies with rule 3.1324. The proposed amended pleadings are attached as Exhibit 101 to each Notice of Motion. In addition, the Michel Declaration in support of each Motion attaches a redlined version of each proposed amended pleading as Exhibit 102. The redlined version compares the proposed pleading to the pleading currently on file, effectively detailing the allegations to be deleted or added by page, paragraph and line number. Moreover, the Michel Declaration in support of each Motion explains how the new facts giving rise to the need to amend were learned, as well as the effect of the proposed amendments and why they are necessary. (See Michel Decls. ISO Motion for Leave to File Second Amended-Answer, ¶¶ 4-8 and ISO Motion for Leave to File Second Amended Cross-Complaint ¶¶ 4-16.)

The Court agrees with the Opposition that the exact timing of the discovery of the new facts as well as an explicit statement as to why the Motion was not brought earlier should have been included. However, given the relatively short timeline of the existence of this case, the Declaration's assertion that the facts were learned during discovery, and the implicit conclusion that the Motion could not have been brought until learning those new facts, the Court finds substantial compliance with the rule's requirements.

At best, the vague response suggests some delay may have been present. However, delay without resulting prejudice is an insufficient reason to deny the Motion. (*Higgins v. Del Faro*,

supra, 123 Cal.App.3d at pp. 564-565.) Here, James asserts that no prejudice exists because the litigation is relatively new, no trial date has been set, etc. (*Magpali v. Farmers Group, Inc.*, *supra*, 48 Cal.App.4th at pp. 486-488.) The Oppositions do not argue otherwise.

For these reasons, both motions are granted.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615162449?pwd=e5SqeATq2HOsxxD7Fhrl3Q7qPFgFZa.1>

Meeting ID: 161 516 2449

Passcode: 073961

If you are unable to join by video, you may join by telephone by calling 1-669-254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: marin.courts.ca.gov

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/07/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0008655

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: C. IBARRA

PLAINTIFF: RICHARD H. BHIMJI

vs.

DEFENDANT: C. O. GARCIA

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant L. Garcia’s demurrer to the complaint of plaintiff Richard H. Bhimji is **overruled**.

Legal Standard

“... A general demurrer will lie where the complaint “has included allegations that *clearly* disclose some defense or bar to recovery.” A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law.” (*Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 288-289, citations omitted.)

First Cause of Action – Civil Code Section 52.1 (The Bane Act)

Plaintiff’s cause of action clearly alleges that Defendant retaliated against him because of his grievance against S. Marquez. Defendant offers no meaningful argument regarding retaliation in his moving brief and instead waits until the reply. Contrary to his explanation, Plaintiff did not “[s]hift[] his position into a retaliation theory” in his opposition to the demurrer.

The cases cited by Defendant in his reply involve First Amendment retaliation claims and a claim brought pursuant to 42 United States Code section 1983. This cause of action is neither. Further, *Quiroz v. Short* (N.D.Cal. 2015) 85 F.Supp.3d 1092, which Defendant cites to show what Plaintiff must allege to survive a pleading motion, involved a motion for summary judgment and not a pleading motion.

Plaintiff is required to show that Defendant acted as he did because Plaintiff filed the grievance against Marquez. The Court finds that Plaintiff’s allegations are sufficient. Plaintiff alleges that Defendant drove from the facility he worked at to San Quentin “in order to search the plaintiff’s

cell.” He said to Plaintiff, “You thought you got away from Jamestown” and “You remember Marquez don’t you.” (§19.) Defendant and Marquez are coworkers. (§22.) There is nothing in the complaint to indicate that Defendant would have any other reason to go to San Quentin to search Plaintiff’s cell that would involve Marquez.

Second Cause of Action – Conversion

“The essential elements of conversion are “(a) plaintiff’s ownership or right to possession of personal property, (b) defendant’s disposition of property in a manner inconsistent with plaintiff’s property rights, and (c) resulting damages.” ...” (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1021-1022.) Defendant argues that Plaintiff did not have the right to possess the radio or CD player because they were contraband. Defendant is raising a factual issue that cannot be resolved on demurrer. Plaintiff’s allegations do not show that the radio and CD player were contraband. Defendant’s reliance on the cell search receipt attached as exhibit B to the complaint is not sufficient. Even if it stated that those items were altered, which it does not, the Court could not accept that as true.

In reply, Defendant argues that Evidence Code section 664 requires the Court to presume that he was regularly performing his duties. Where section 664 is applicable, “the presumption shifts the burden of proof to the party against whom it operates to establish the nonexistence of the presumed fact.” (*Morgenstern v. Department of Motor Vehicles* (2003) 111 Cal.App.4th 366, 373.) Thus, assuming section 664 applies, Plaintiff will have to **prove** that the items were not altered. Defendant additionally argues that it would not be reasonable for the Court to infer he was committing a crime. Plaintiff has alleged that Defendant converted his property. The Court must accept that allegation as true.

Immunity

Defendant argues he is immune from liability pursuant to Government Code section 820.4. That section states provides that “[a] public employee is not liable for his act or omission, exercising due care, in the execution or enforcement of any law. ...” Defendant again raises a factual issue that cannot be resolved on demurrer since his argument assumes that Plaintiff’s property was contraband.

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